

1APP Level 1 Referral Associate Agreement

Important: This template is business/legal drafting support, not legal advice. 1APP should have an Ontario business lawyer review before use.

This Referral Associate Agreement (the “Agreement”) is made effective as of **[DATE]** between:

1APP Technologies Inc. (“1APP,” “Company,” “we,” or “us”) and **[ASSOCIATE LEGAL NAME]** (“Referral Associate,” “Associate,” or “you”).

Together, the “Parties.”

1. Purpose

1APP operates a business automation and customer communication platform for local businesses. The Referral Associate may introduce qualified business prospects to 1APP in exchange for referral compensation under this Agreement.

This Agreement is intended to protect both Parties by clearly defining:

- What the Referral Associate can and cannot do
 - How commissions are earned
 - When commissions are paid
 - Who owns the client relationship
 - What happens if the relationship ends
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2. Independent Contractor Status

The Referral Associate is an independent contractor and not an employee, partner, franchisee, agent, officer, or legal representative of 1APP.

Nothing in this Agreement creates an employment relationship.

The Referral Associate is responsible for:

- Their own taxes
- Their own expenses, unless approved in writing
- Their own tools, devices, transportation, and communication costs
- Compliance with applicable laws while prospecting or making introductions

1APP will not provide employee benefits, vacation pay, statutory holiday pay, CPP/EI remittances, workers' compensation coverage, or other employee benefits unless required by law.

3. Referral Associate Role

The Referral Associate's role is limited to making warm introductions and helping book qualified audits/demos for 1APP.

The Referral Associate may:

- Identify potential business clients
- Make introductions to 1APP
- Share approved 1APP materials
- Invite business owners to a free audit/demo
- Submit lead details into the approved 1APP form or CRM process

The Referral Associate may not:

- Quote custom pricing
 - Discount 1APP services
 - Sign contracts on behalf of 1APP
 - Collect client payments
 - Promise specific results, revenue, leads, rankings, savings, or timelines
 - Represent themselves as an employee, owner, partner, or officer of 1APP
 - Run demos unless separately approved in writing
 - Use unapproved marketing materials or claims
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4. Qualified Lead Definition

A lead is commissionable only if it is a qualified lead and properly submitted.

A qualified lead must include:

- A real business owner or decision-maker
- Business name
- Contact name
- Phone and/or email
- Serviceable market
- A real business pain related to missed calls, poor follow-up, booking/admin, reviews, lead leakage, or customer communication
- Agreement to speak with 1APP, attend a demo, or receive pricing information

A lead is not qualified if:

- It is only a name with no conversation
 - It is already active in 1APP's CRM or pipeline
 - Another associate already submitted it first
 - The business is outside 1APP's current target market
 - The prospect has no realistic ability or intent to pay
 - The lead was submitted after 1APP already had the opportunity
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5. Lead Ownership Window

A properly submitted qualified lead is protected for **90 days** from the date it is logged in the 1APP CRM.

If there is no meaningful activity for **30 days**, 1APP may reassign or take over the lead.

If two associates claim the same lead:

1. The first properly logged CRM record wins.
 2. If unclear, 1APP makes the final decision in good faith.
 3. No associate may argue with the client or damage the 1APP brand over lead ownership.
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6. Referral Compensation

Referral compensation is earned only when the referred client signs with 1APP and pays their first invoice.

Client Plan	Referral Bonus
Standard	\$50
Growth	\$100
Revenue Engine	\$150

Referral bonuses are paid on collected revenue only.

No referral bonus is owed for:

- Taxes
- Payment processing fees
- Refunded payments
- Chargebacks
- Free trials or free months
- Internal clients already in the 1APP pipeline

- Leads not properly submitted
 - Deals closed using unauthorized claims, discounts, or promises
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7. Payment Timing

Referral bonuses are paid after:

1. The client signs with 1APP;
2. The client's first invoice is collected and cleared;
3. The refund/chargeback risk window has passed, if applicable; and
4. The lead is confirmed as qualified and properly attributed.

Expected payout timing: **within 15 business days after the above conditions are satisfied**, unless otherwise agreed in writing.

1APP may require the Referral Associate to submit an invoice before payment.

8. Refunds, Chargebacks, and Clawbacks

If a client refunds, cancels, disputes, or charges back a payment connected to a referral, 1APP may reverse the referral bonus or deduct it from future amounts owed.

If a referral was obtained through misleading claims, unauthorized promises, brand misuse, or misconduct, 1APP may withhold or reverse compensation related to that deal.

9. Brand and Conduct Rules

The Referral Associate must:

- Use only approved 1APP scripts and materials
- Be honest about what 1APP does
- Avoid exaggerated income, revenue, lead, or ROI claims
- Avoid fake urgency or fake scarcity
- Protect confidential business information
- Follow applicable privacy and anti-spam laws, including CASL where applicable
- Act professionally with clients, prospects, other associates, and 1APP team members

The Referral Associate must not:

- Create unapproved ads, landing pages, websites, social profiles, or documents using 1APP branding
- Misrepresent pricing or capabilities
- Collect sensitive client data outside approved processes

- Use 1APP's name to promote unrelated products or services
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10. Confidentiality

The Referral Associate may receive confidential information including pricing, client details, scripts, systems, processes, training, strategy, CRM records, and business plans.

The Referral Associate agrees to keep this information confidential during and after the Agreement.

Confidential information may not be copied, shared, sold, published, or used for any purpose outside approved 1APP activity.

11. Client Ownership and Non-Circumvention

All clients, prospects, accounts, workflows, systems, documents, CRM records, and business relationships created through 1APP activity belong to 1APP.

For **12 months** after this Agreement ends, the Referral Associate must not bypass 1APP to sell competing or similar services to any 1APP client or active prospect they learned about through 1APP.

This clause is intended as a reasonable non-solicitation and non-circumvention protection, not a general non-compete.

12. Intellectual Property

All 1APP materials, scripts, logos, sales assets, onboarding systems, snapshots, workflows, templates, automations, documents, and training materials remain the property of 1APP.

The Referral Associate receives only a limited, revocable permission to use approved materials while in good standing.

13. No Guaranteed Income

1APP does not guarantee any income, commissions, leads, sales volume, territory, or business opportunity.

Compensation depends on qualified referrals that become paying clients.

14. Termination

Either Party may terminate this Agreement with **7 days' written notice**.

1APP may terminate immediately for cause, including:

- Misrepresentation
- Unauthorized promises
- Brand misuse
- Confidentiality breach
- Privacy or anti-spam violations
- Client payment handling without authorization
- Harassment, dishonesty, or conduct damaging to 1APP

After termination, the Referral Associate remains eligible for properly earned referral bonuses on qualified leads submitted before termination, unless the bonus is connected to misconduct or a breach of this Agreement.

15. Dispute Resolution

The Parties agree to first attempt to resolve disputes in good faith through written discussion.

If unresolved, disputes will be handled under the laws of Ontario, Canada, and the courts of Ontario will have jurisdiction unless the Parties agree to mediation or arbitration in writing.

16. Entire Agreement

This Agreement, together with any signed compensation schedule or written amendment, is the entire agreement between the Parties for Level 1 Referral Associate activity.

Changes must be in writing and signed or confirmed by both Parties.

17. Signatures

1APP Technologies Inc.

Name: _____ Title: _____ Signature: _____
Date: _____

Referral Associate

Legal Name: _____ Signature: _____ Date: _____
Email: _____ Phone: _____
